CONSTABLE EDSON CHITEMBETEMBE
and
CHIEF SUPERINTENDENT NGIRAZI
(Trial Officer)
and
COMMISSIONER-GENERAL OF POLICE
and
POLICE SERVICE COMMISSION

HIGH COURT OF ZIMBABWE
MAMBARA J
HARARE; 9 and 25 June 2026

Opposed Application - Reasons for Judgment

N. Mugiya, for the applicant
T Tembo, for the respondents

MAMBARA J:

[1] On 9 June 2026, after hearing counsel and reading the papers, I granted an order reviewing and setting aside the applicant's conviction and sentence, with costs on the ordinary scale against the first and second respondents. The Attorney-General's Office thereafter wrote on 17 June 2026 requesting reasons, stating that the respondents wished to consider an appeal. These are my reasons.

Background

[2] The applicant, a police officer, was tried under paragraph 35 of the Schedule to the Police Act on an allegation framed as "acting in an unbecoming or disorderly manner or in any manner prejudicial to good order or discipline or reasonably likely to bring discredit to the police service." The charge sheet alleged that on 18 July 2024 he wrongfully and unlawfully gave Takudzwa Sakhala his unregistered silver Toyota Sienta, "which is in any manner prejudicial to good order or reasonably likely to bring discredit to the police service." The

synopsis later stated instead that the applicant had failed to register the vehicle within the required period.

[3] The record further shows that, during the disciplinary proceedings, the prosecutor openly stated that the facts in the charge sheet and synopsis required correction and that "the facts will be different from what they are now." When the matter resumed, the defence objected that the initial synopsis had alleged that the vehicle was being used to carry passengers to and from Kadoma, whereas the new case was that the applicant had failed to register the vehicle within the required period. The matter was postponed to afford the defence time to meet the altered case. Those exchanges are critical. They demonstrate that the factual basis of the prosecution shifted materially during the trial. Pages 40 and 41 of the record are particularly clear on that point.

[4] The evidence that eventually emerged was narrow. Inspector Moyo stated that the driver, not the applicant, was intercepted after the vehicle was found parked at what municipal police considered an undesignated or improper loading place; that driver was later taken to court for operating without an operator's licence and parking at an undesignated point, and was convicted only on the parking charge. Moyo expressly said he never engaged the applicant about registration, and he could not dispute the defence that registration plates had been unavailable. The second state witness, Detective Assistant Inspector Haripo, only established ownership and the fact that the vehicle was unregistered at the material time; he did not investigate when the vehicle had been acquired, whether the registration period had in fact expired in law, or whether plates were unavailable. The applicant's defence was that he had attempted to register the vehicle twice and had failed only because no registration plates were available.

Grounds for Review

[5] The review was premised on gross irregularity. The applicant contended, in substance, that he had been charged and convicted on a misdirected and legally uncertain basis; that the factual case against him shifted from suspected passenger-carrying to alleged failure to register; that the elements of the disciplinary count were not proved; and that the appellate confirmation did not cure the defects. The papers also raised a point in limine concerning

whether the respondents' opposing affidavits were invalid because the commissioners of oaths were legal practitioners employed in the same offices as the deponents.

[6] The legal setting is straightforward. Section 69 of the Constitution of Zimbabwe guarantees every person accused of an offence the right to a fair and public trial before an independent and impartial court, and s 70(1)(b) and (c) guarantee that an accused must be informed promptly of the charge in sufficient detail to answer it and be given adequate time and facilities to prepare a defence. The High Court also has inherent constitutional power to protect and regulate its own process in the interests of justice.

[7] In addition, the Constitution establishes the Police Service and sets out its functions, including detecting, investigating and preventing crime, maintaining law and order, and upholding the Constitution and enforcing the law without fear or favour. The Constitution therefore recognises the institution as the Police Service. That constitutional nomenclature is important, though it was not decisive of the result before me.

Analysis

[8] I first disposed of the point in limine. I was not persuaded that the respondents' opposing affidavits were nullities merely because the commissioners of oaths were legal practitioners employed in the offices from which the affidavits emanated. The question is one of disqualifying interest, not mere workplace association. There was no evidence that either commissioner had a personal, proprietary or pecuniary interest in the outcome of the matter. On the contrary, the respondents' own heads relied on Marega v The Commissioner-General of Prisons and the Trial Officer HH 140/17 for the proposition that an affidavit is not invalid where the commissioner's only interest is that of the State. A commissioner is not disqualified by mere employment connection absent a real interest in the dispute. I therefore dealt with the matter on the merits.

[9] On the merits, the decisive difficulty for the respondents was the disconnect between the charge preferred, the facts successively advanced, and the facts ultimately proved. The jurisprudential point is not obscure. The purpose of a charge is to inform an accused with clarity of the case he has to meet. That is the long-settled principle reflected in *Rex v Alexander & Ors* 1936 AD 445 at 457 and *S v Hugo* 1976 (4) SA 536 (A), authorities

expressly cited in the applicant's heads. The same principle now finds direct constitutional protection in ss 69 and 70 of the Constitution.

[10] Here, the prosecution's own conduct demonstrated uncertainty as to what misconduct it truly sought to punish. The record began with one factual theme, namely use of the vehicle in circumstances suggestive of passenger-carrying from an undesignated place. It then moved, after amendment, to a different complaint, namely failure to register the vehicle within the prescribed period. The trial court later added yet another gloss by emphasising suspicion that the vehicle was being used as "mushika-shika," even though the applicant was not the driver and no such charge was the one ultimately said to found the conviction. In my view, this was not a mere matter of wording. It went to the heart of the fairness of the proceedings.

[11] The respondents' own appellate judgment correctly recognised, citing *Kaisi* v *Trial Officer (Superintendent Sithole) and the Commissioner of Police HC* 287-17 *and Assistant Commissioner Matsika* v *Commissioner-General of Police* HB 67-17, that paragraph 35 is an omnibus provision containing disjunctive offences. That was an important concession. Once that is accepted, it follows that the prosecuting authority must identify, with workable clarity, the limb relied on and then prove facts answering that limb. What it cannot do is proceed on a floating amalgam of possible offences and then convict on a blended formulation of its own making.

[12] That is precisely what occurred. The charge sheet selected only two limbs, namely conduct "prejudicial to good order" or "reasonably likely to bring discredit." The synopsis on page 37 of the record spoke instead of failure to register within the required period. The trial judgment then convicted on a conjunctive hybrid, holding that "the act was wrong, unlawfully, prejudicial to good order and reasonably likely to bring discredit to the police service." In other words, the court did not confine itself to a chosen disjunctive limb; it created a composite basis for guilt. That was a material misdirection. Pages 37, 41, 51 and 52 of the record, read together, make that plain.

[13] There was a further and equally serious problem. The trial judgment itself acknowledged that ZRP Kadoma Traffic "did not investigate why the defaulter did not register his motor

vehicle, nor did they charge him for failing to register the motor vehicle within the period stipulated by the regulations." That statement is devastating to the conviction. If the specific regulatory breach of late registration was not itself charged and was not itself proved in any precise and legally anchored way, paragraph 35 could not lawfully be used as a catch-all substitute simply because the tribunal disapproved of the overall circumstances. A disciplinary jurisdiction is broad, but it is not at large. It remains constrained by legality and fairness.

[14] I accept, as the respondents argued, that disciplinary proceedings are distinct from criminal proceedings and are not barred merely because related criminal charges against another person were dealt with separately. But that proposition did not assist them. The question before me was not double jeopardy in the strict sense. It was whether the facts proved against this applicant had any real legal nexus to the disciplinary charge on which he was convicted. In my view they did not. The proved event was that another person drove and parked the vehicle at an undesignated place. The applicant was the owner, not the driver. The subsequent attempt to convert that occurrence into a conviction for an ill-defined paragraph 35 breach based on failure to register the vehicle within time was too remote and too uncertain to sustain.

[15] The respondents argued that, if the charge was defective, the applicant should have excepted to it and that review should not lie. I did not agree. This was not a merely technical irregularity curable by exception alone. The record discloses a prosecution that changed shape, an omnibus charge not properly particularised, a conviction on a conjunctive formulation not matching the disjunctive structure of the offence, and an evidential case that never satisfactorily tied the applicant's proved conduct to the limb or limbs relied upon. That combination constituted a gross irregularity in the proceedings and in the resulting decision. In those circumstances, this Court was entitled, and indeed obliged, to intervene in the interests of justice.

[16] I should add one final point. Although some argument was directed at whether the wording should have referred to the "Police Force" as in the old statutory text, rather than the "Police Service," I did not regard nomenclature as the decisive issue. The Constitution itself now establishes the institution as the Police Service. The vice in the proceedings was not primarily terminological. It was substantive: the applicant was not fairly and lawfully convicted on facts and elements that cohered.

Disposition

[17] For all those reasons, I granted the application for review on 9 June 2026 and made the order already of record, namely that the conviction and sentence be quashed and set aside, with costs on the ordinary scale against the first and second respondents jointly and severally, one paying the other to be absolved. I did not consider punitive costs warranted. The matter disclosed serious legal misdirection, but not bad faith.

MAMBARA J:…….

Mugiya Law Chambers, applicant's legal practitioners
Civil Division, respondents' legal practitioners